

sanction to enforce compliance on an unwilling King. Half a century later, the Provisions of Oxford gave proof of some advance in political theory. They contained an expedient, crude enough it is true, for constraining royal officials to keep the law: forms of an oath of office to be taken by castellans and ministers of all grades were carefully provided.¹ Even this was only a first step towards settling a problem not completely solved until the modern doctrine of ministerial responsibility was firmly established.²

CHAPTER FORTY-SIX.

OMNES barones qui fundaverunt abbatias, unde habent cartas regum Anglie, vel antiquam tenuram, habeant earum custodiam cum vacaverint, sicut habere debent.

All barons who have founded abbeys, concerning which they hold charters from the kings of England, or of which they have long-continued possession, shall have the wardship of them, when vacant, as they ought to have.

Religious houses of various orders (abbeys, priories, and convents), which had increased rapidly in number since the reign of Henry I., fell naturally into two classes, according as they had been founded by the King or by private individuals. The King or the great baron, in bestowing lands on a religious foundation, reserved, either expressly or by implication, valuable rights of property: of these the control over the election of the abbot or prior, together with the wardship of the fief during vacancies, were the most important. King John, while by his charter to the clergy he renounced control over election of bishops, reserved his rights of wardship; and the barons insisted that the proprietary rights of mesne lords who had founded religious houses, should also be respected. John, however,

¹ See *Select Charters*, 388-391, and Madox, II. 149, with authorities there cited.

² Prof. Adams seems to make too much of this chapter (*Origin*, 259-260). It is only a vague promise to employ honest officials: it confers no constitutional veto upon anyone. Had the function of defining fit ministers been conferred on the Common Council, it would have been a notable innovation.